# Land Records in Odisha : A Historical Perspective

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Collection of land revenue and institution of state in India have always been coterminous. Land revenue constituted the main source of income of Indian State till the end of the British rule. Bernier, V.A. Smith, etc., considered agricultural lands in India to be crown lands which conferred the rights upon the ruling power to levy crown rent. Cultivators were also recognised as owners of land parcels under their respective possession. Abu-l Fazl opined that the king realised land revenue from people for protecting and dispensing justice to his subjects. Collection of land revenue required maintenance of land records on the basis of which the revenue demand could be assessed and collected. India had had a long tradition of record of rights in land. For assessment of land revenue, the British started the survey and settlement operation and created the land records, recording rights in lands. These records were prepared for the primary purpose of collection of land revenue; if they also provided a certain security of land titles, this was purely accidental.[1] The title over land was presumptive. Systematic land records in Odisha were prepared primarily during the British rule. These records furnished information important for land revenue assessment such as area and classification of land, amount of rent and other payable dues, name of tenants, etc.

In ancient Odisha under Hindu kings, village was the unit of assessment of land revenue. The village head (Pradhan) distributed the demand for the whole village among the cultivators in proportion to quantity and quality of land cultivated by the each. Vrihotbhogi and the Pustalpak were the village revenue officer and village accountant during the Bhaumakara rule.[2] The inscriptions of Somavamsis reveal that state maintained a regular Department of Survey and Land Measurement; land records were maintained carefully.[3] From medieval period till the Gajapatis, land was measured by eye estimation or bamboo rod, locally called Padika. The village Accountant (Bhoi) maintained the accounts of land. Pradhan collected land revenue from villagers and gave the tenants palm leaf receipts.

After the conquest of the province, the Mughals retained the old division of Odisha into crown lands (Mugalbandi) and Garhjats. In Mughalbandi area, they introduced settlement of lands by measuring the lands of every village and fixing the rates of rent village wise.[4] After revenue assessment, the authorities issued written document called Patta, indicating the village rate or amount of revenue.[5] Patta stated revenue demand assessed upon the whole village and name

of Patwari most probably came from Patta.[6] Muqqadam / Patawari maintained the account of land records of the village. Muqqadam distributed Jama of the village among the individual cultivators.[7] The Marahathas continued the same system, although they reorganised the fiscal divisions and made the village heads more powerful. In 1805, when order was passed to write all communications with the natives of this province in Oriya, the Odia Muharirs were at disadvantage because though they were good at their iron pen and bundle of palm leaves, they were helpless to write in paper with ordinary pen.[8] The land records were evidently maintained in palm leaves.

In 1821, Stirling remarked that Thani(resident) raiyats did not generally take Pattas as they held land under their jot or plough hereditarily and amount of their proper payment on account of rents depended on measurement and adjustment of rates made long before by act of sovereign.[9] Cultivated field was measured (Jarib) with Padika and unit of measurement of land was Biswa, Guntha and Maan. W.W. Hunter stated that cultivators had no defined rights in land, but their rights were protected by the fact that there was more land in Odisha then there were cultivators to till it.[10]

Under the British Rule, Odisha remained territorially dismembered within three British administrative units, i.e., Bengal, Madras and Central Provinces. These provinces were governed by different tenancy laws and accordingly, maintenance of land records of the district was governed by tenancy laws prevalent in its respective parent province. The local tenancy laws governed the preparation of land records in existing princely states.

In Puri, Cuttack and Balasore, temporary settlements of land were made with Kanungos, Chaudhuris, Muqqudams, etc., who were the erstwhile fiscal officials of previous regime without any proprietory title to land. They were now recognized as owners of land (Zamindars). They were required to pay fixed amount of revenue to Government and in turn, they collected the land revenue from people. The Zamindars were required to grant Pattas to the raiyats or under-renters. [11] It was expected that the process would result in creation of record of rights for proprietor and raiyats; these provisions became a dead letter.[12]

Between 1834 to 1843, lands were surveyed. All plots were measured in continuous succession in local Padika by Amins. They recorded these measurements, estimated area, name of tenants, etc., in a field book (Bhauria). From Bhauria was prepared the statement showing at glance all lands held by a single tenant.[13] Bheean of each village and estate was prepared thereafter. Pattas were handed over to thani raiyats. In some places, Pahi raiyats were also given Pattas but Bengal Government ordered not to issue any Patta to them. The Zamindars maintained the land records of his estate and could give Pattas to Pahi tenants.

The settlement of 1837 provided accurate record of the Thani lands and of the rent that could be lawfully demanded. The Pattas provided security of tenancy to Thani raiyats, giving immunity from illegal demands or dispossession.[14] Field to field enquiries were made by officers, recording all rights and claims, as they existed in the field.[15] Patta to a resident tenant was a document of his ownership over the land parcel possessed by him.

In revision settlement made between 1890-1900, known as provincial settlement, Pattas prepared under Bengal Tenacy Act, 1891 were distributed to thani and Pahi raiyats. Patta contained all the land parcels held by one tenant on same condition. Bengal Tenancy Act which conferred the right of continued occupancy on the basis of twelve years' possession removed the old distinction of Khud Kasht and Pahi Kasht tenants. In 1821, Sterling observed that raiyats did not possess the right to sell or mortgage land. By 1890, it was reported by Assistant Settlement Officers from Cuttack, Puri and Balasore that transfer of Thani rights was a matter of everyday occurrence.[16] Even the judges auctioned the land in execution of decree. Title of raiyats had already been recognized in lands under their possession. The Zamindars consented to the transfer by allowing Dakhil Kharij in his Sherista by taking Dakhil Khariz Salami.[17] Land records became, thus, a document of title and ownership.

Statutory provisions were made regarding preparation of record of rights under Section-112 of the Odisha Tenancy Act,1913 and particulars to be recorded therein such as the name and class of each tenant, situation and quantity of the land held by him, the name of each tenant's landlord, the rent payable, etc.[18] In the resurvey of 1922-32 records-of-rights were prepared under Odisha Tenancy Act and all parts of Odisha division had up-to-date land records which were legally authoritative record for the first time.[19]

In Sambalpur, survey operation was started in 1862 by Russell, the then Settlement Officer. Sambalpur was settling to normalcy in post-revolt period. Settlement operation was suspended apprehending political tension due to abhorrence of people to field survey.[20] Survey was resumed in 1872 and completed in 1873. Only Khasaras or registers of fields, showing each plot with name and particulars of cultivator, extent of land, etc, were prepared in respect of khalsa area of the district.[21] Traverse survey was done in 1884 and then, cadastral survey on the basis of traverse plots were done and completed in 1888-89 through the agency of Patwari. Mr. Dewar prepared the maps and records for the entire district including Zamindari area for complete records in respect of Khalsa and Zamindari villages. He was succeeded by Hamid who completed settlement operation in 1926.[22] Section 79 and 80 of the Central Provinces Land Revenue Act,1881 read with the notification of 1923 of Revenue Department[23] prescribed the format of land records which comprised of Khewat, Khatian containing the number of holding, name of the tenant, his caste and residence, plot numbers, rent, cess, etc.

Ganjam and Koraput were under Madras province since 1766; there was no attempt on the part of British to change the existing system of revenue administration during first fifty years. In every village, the village accountant (Karanam) maintained a register of quantity of land held by each cultivator, the part of it cultivated by him, the actual produce, share of revenue payable by him, etc.[24] In 1802,the British introduced permanent settlement with existing Zamindars and chiefs who were asked to provide Pattas to their tenants. The Government did not consider survey or preparation of RoRs in Zamindari areas its responsibility. Isolated efforts were made by some Zamindars for survey and preparation of record-of-rights. But RoR was not a complete document. Unlike Khatian of Odisha Division, it did not contain detailed information.[25] Regular survey was made in Zamindari tracts when Odisha

became a separate province and RoRs were published in 1962. RoRs were prepared following the format under Odisha Tenancy Act.

In Ryotwari areas of Ganjam, Patta recorded the extent of land in occupation of cultivator; it was not a document of title.[26] Lands were surveyed and RoRs were prepared in the last quarter of nineteenth century between 1877 to 1884; subsequent updation of land records was not satisfactory. No report is also available on any ryotwari settlement or any of the revision settlement that took place. The raiyats were provided with updated record of rights under the statutory provisions of Odisha Survey and Settlement Act.

In ex-states, no regular survey, preparation of RoR and settlement was done until the end of nineteenth century. In all these princely states, the old tribal system of villages, managed by village headman survived wherein the king made certain demands upon him and the village head distributed the burden of the demands upon the individual cultivators. In all states, the work was started by end of 19th century and in early decades of twentieth century; the quality was below standard. Maps and land records were prepared from viewpoint of revenue collection; the land records were hardly informative.[27] For villages under Juang and Bhuyan Pirha in Keonjhar State, there was no separate survey and individual land records. In Bhuiyan Pirha, the tax was imposed on plough and houses. In the native states, there were no trained field staffs for maintaining the records up-to-date. The updated land records of all states were prepared after the merger of these states in Odisha.[28]

The OS&S Act, 1958 was enacted, integrating different revenue systems. It evolved a uniform procedure for survey, preparation and maintenance of land records for the whole State. The Act statutorily defined the constitution of RoR. RoR consisted of Khewat and Khatian; the map formed the part of RoR. Particulars like the name of each tenant, situation and extent of land held by each tenant, Sattwa (status), Kissam (classification) of each plot, boundary tenants of a plot, etc, were recorded in Khatian. Khatian constituted textual part of RoR; the map constituted spatial part of it. A copy of his Khatian is distributed to the raiyat. Records-of-rights of the village, maintained holding-wise and status wise, is called Jamabandi Register which is maintained in the Tahasil office. A copy of the Register is maintained at Revenue Inspector level.

Change of ownership of land due to sale purchase, gift, partition, inheritance, lease, alienation, land acquisition, civil court order, etc. propel of RoRs under order of Tahsildar. The detailed procedure of updation through mutation proceedings is provided under OS&S Rules, 1962.This was previously done manually. Causing delay Spatial correction was scarcely done; mutation case records often got misplaced or lost.

Successive Five-Year Plans laid emphasis on the proper maintenance of land records for providing good governance and better implementation of various rural development programmes. Seventh Five year plan reiterated the importance of regular updating of land records. Central Schemes of Computerisation of Land Records (CLR) and Strengthening Revenue Administration and Updating Land Records (SRA&ULR) were launched in the country for computerisation of land records in all Tahasils. Accordingly, the land records textual data were computerised and up-loaded in Bhulekh website

in respect of all Tahasils of State. National Land Records Modernisation Programme (NLRMP) which merged CLR and SRA&ULR aimed at developing an updated and error-free land records and easy access to information thereof. The basic components of the programme were computerization of RoRs, computerization of registration, survey/re-survey where required, digitization of cadastral maps and integration of textual and spatial records, etc. From 2016, it has been revamped as Digital India Land Records Modernization Programme (DILRMP). All districts of the State have been taken up under this programme. The RoRs of 51,705 villages of the State have been computerised and web hoisted on the website http://bhulekh.ori.nic.in. Cadastral Maps of all villages have been digitised and web hoisted for public view. Both textual and spatial data have been integrated. Attributes of land records including the mutation data and other land attributes of all villages are continuously updated on real time basis, through e-Mutation as updating of land records though automated and automatic mutation is in place. The registration process in the state has been computerised. Registration of sale of land triggers change in the land record systems in Tahasil for automatic updation. New Patta can be generated in one day.

Land records in the state are not updated cent percent. There is gap between land records with Government and actual state of land ownership. This creates problem in award of compensation at the time of land acquisition. RoRs prepared in sixties and eighties have not been updated. In such cases, the original recorded tenants are dead and are succeeded either by second or third generation of legal heirs. The legal heirs possess lands separately by oral partition without legal status. This often leads to litigation pertaining to rightful land ownership. While textual data of RoRs are updated, there is concern about accuracy of spatial portion. RoRs in those cases do not reflect the field position on ground. Though 99% land records data have been computerised, few villages are yet to be entered in Bhulekh.[30] The land records of some villages belong to 1926-1930 settlement. These records are completely outdated. RoRs in the State do not reflect the land acquisition proceedings, revenue court cases, land use restrictions, forest rights claim, mortgages, civil disputes, etc.

Numerous land disputes are locked in litigations in civil courts pertaining to the validity of land title and rightful ownership. In revisional courts of the State, as many as 1,28,793 cases are pending under OS&S Act, 1958 and OCH&PFL Act,1972 as on May, 2020 which relate to land titles and ownership.[30] Besides, 15866 cases relating to consolidation matters are pending in lower revenue courts. As on 1.8.2020, RoRs of 117372 holdings, involving Ac 104688.65 are recorded as Bebandabost. The title and possession over such holdings is yet to be decided.[31] RoRs of 81109 holdings involving Ac. 12636.59 dec. are in Sikim status and title of such lands is also not conclusive.[32] In absence of error free land records, many small and marginal farmers are deprived of getting bank credit for agriculture and input subsidy from Government. In the changed land-use pattern, lands are now increasingly being used for setting up industries, expansion of railways, roads, power plants, manufacturing units, real estate, etc. Non-availability of encumbrance free land, non-updation of land records, unclear land titles, accompanying costs due to title disputes and litigation, etc., escalate the cost of project. Sometimes, projects do not come up because of

above bottlenecks. So, updated case records with conclusive ownership which can be checked online holds key to future investment in land in Odisha.

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